SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO.	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE	OF	PAGES
	70FBR927Q00000003	☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	11/02/2026	1		51

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO.

7. ISSUED BY	CODE 70FBR9	8. ADDRESS OFFER TO
FEMA REGION 09 1111 BROADWAY SUITE 1200 OAKLAND CA 94607-4052		

9. FOR INFORMATION CALL	a. NAME	b. TELEPHONE NO. *(Include area code) (NO COLLECT CALLS)*
	George Brown	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

11. The contractor shall begin performance within 10 calendar days and complete it within 60 calendar days after receiving

☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. ***(See*** _____ ***).***

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	12b. CALENDAR DAYS
☒ YES ☐ NO	10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1300 ***(hour)*** local time 11/17/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*

15. TELEPHONE NO. *(Include area code)*

16. REMITTANCE ADDRESS *(Include only if different than Item 14.)*

CODE FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)*

AMOUNTS ▶

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

20b. SIGNATURE

20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ▶ ITEM

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT

☐ 10 U.S.C. 3204(a) ( ) ☐ 41 U.S.C. 3304(a) ( )

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return* 1 *copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*

31a. NAME OF CONTRACTING OFFICER *(Type or print)*

George Brown

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

BY

31c. DATE

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	This is a Request for Proposal (RFP) for a firm-fixed priced (FFP) offer for construction services to erosion repairs and mitigation measures for two areas of the Kilohana site designated as the South Damage Area and the Northeast Damage Area as outlined in the Statement of Work (SOW) included as Attachment 1 within this RFP. Pursuant to FAR 36.204(f), the estimated price of this project is between $160,000.00 and $220,000.00 price range but see Offer Affordability Notice in Section L of this RFP.				
0001	Erosion repairs and mitigation accordance with Attachment 1-Statement of Work. FFP				

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PART I – The Schedule

A – Solicitation/Contract Form
Reference SF1442 (p.1-2)

B – Supplies or Services and Prices / Costs
Reference OF336 Continuation Sheet (p.3)

C – Description/Specifications
Statement of Work (SOW) referenced in Section J as Attachment 1.

D – Packaging and Marking
If any materials paid for by the Government and obtained by the Contractor for use under this contract are deemed excess and desired to be retained by the Government, then these items shall be neatly repackaged and if necessary, appropriately labeled.

E – Inspection and Acceptance

FAR Clauses Incorporated by Reference
The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at FAR "52.252-2 CLAUSES INCORPORATED BY REFERENCE" contained in this document. See FAR 52.252-2 for an internet address (if specified) for electronic access to the full text of a clause.

Reference inspection and acceptance rights as outlined at 52.213-4(d) and as follows:

Clause	Description	Date
52.246-12	Inspection of Construction	Aug 1996
52.246-13	Inspection--Dismantling, Demolition or Removal of Improvements	Aug 1996

Final
Final inspection and acceptance shall be by the Contracting Officer or his/her duly authorized representative at:

Inspection/Acceptance: FEMA-Long Term Recovery Office
FEMA-DR-4724-HI
535 Lipoa Pkwy
Kihei, Hawaii 96753

For the purpose of this/these clause(s), the Contracting Officer's Representative (COR) or Alternate COR is the representative of the Contracting Officer. The Contracting Officer reserves the right to unilaterally designate other Government agents as authorized representatives. Should such occur, the Contractor will be notified by a written notice.

Contractor Quality Control

General

The Contractor shall provide and maintain an effective quality control program. The burden of proof of contract compliance is placed on the Contractor and not assumed by the Government. The Contractor's quality control will not be accepted without question and the right to inspect or verify at any time is reserved by the Government.

Kick-Off Conference

After the contract is awarded and before operations are started, the Contractor shall meet with the COR, or their representatives, and discuss quality control requirements. The Contractor shall furnish the COR within five (5) days after award, the following information:

(1) The name and qualifications of the individual performing inspections, giving education, licenses, present job position and previous work experience.

The meeting shall develop mutual understanding relative to details of the system, including the forms to be used for recording the quality control operations, inspections, administration of the quality control system, and the interrelationship of Contractor and Government inspection.

Quality Control System

(1) The Contractor shall establish a quality control system to perform sufficient inspection and tests of all items of work, including that of subcontractors, to insure conformance to applicable specifications and drawings with respect to the materials, workmanship, work effort, finish, functional performance, and identification, with emphasis on the surveillance, tests and submittals required in the Technical Provisions of the contract specifications, including applicable in-plant inspection. This control will be established for all construction except where the Technical Provisions of the contract provide for specific Government control by inspections, tests or other means. The Contractor shall notify the COR or his authorized representative in writing of any proposed change to the Contractor's quality control system; no such change shall be implemented prior to acceptance in writing by the COR or his authorized representative.

(2) Review Submittals: The Contractor's control system will specifically provide for surveillance, coordination, and review of shop drawings, materials and equipment data submittals. Such surveillance, coordination, and review of the aforementioned data shall be made to assure that the submission is complete and in compliance with applicable contract provisions. The Contractor's control system will be keyed to the proposed work sequence in a manner to prevent deficiencies and/or delays caused by submittals lacking content and text required by the contract technical Provisions. The Contractor will designate, by name, the quality control representative responsible for review, certification and submittal of shop drawings if different than the individual appointed as required in paragraph b.(1) above.

(3) Quality Control Procedures: The Contractor's quality control system at the job site shall follow a 3-step procedure consisting of (a) a Preparatory Inspection; (b) an Initial Inspection; and (c) Follow-up Inspections. The Contractor's quality control representative will advise the COR at least 24 hours prior to all preparatory and initial inspections. The preparatory and initial inspections will be attended by the applicable quality control representative and the Contractor's individual responsible for implementation of that portion of work at the site. Government personnel may participate in the preparatory, initial inspection, and follow-up inspection.

(a) *Preparatory Inspection:* A preparatory inspection will be required to ensure that the plant, materials, and equipment meet the submittals and contract requirements. The Contractor will perform preparatory inspections as soon as possible after delivery of plant, equipment and material to the site and, in any event, prior to incorporation of material and equipment in the work.

(b) *Initial Inspection:* An initial inspection will be required at the start of each new phase of work to establish that methods, techniques, and standards of workmanship are in strict compliance with the contract requirements.

(c) *Follow-up Inspections:* Follow-up inspections will be performed on a daily or recurring basis as necessary to ensure that work is proceeding in accordance with contract requirements.

Quality Control Reports

The Contractor shall furnish a daily quality control report. The report shall be in accordance with the attached sample, or such other form as may be proposed by the Contractor and approved by the COR. Additional check lists and forms for specific operations may be required to supplement the daily inspection form. The report shall include all inspections and tests made. It shall provide factual evidence that the required inspection or tests have been performed, including type and number of inspections or tests, the results, the nature of defects, cause of rejection and the corrective action taken. The daily report shall cover both conforming and defective items. It shall include a statement that all materials and equipment incorporated in the work are in full compliance with the terms of the contract except as noted. The report will cover all items and specifically include the items listed in the quality control paragraphs of the Technical Provisions. The report will be verified and signed by the prime Contractor's designated quality control representative. The daily reports will be furnished in two copies (original and one (1) duplicate) to the COR. The report will be legibly handwritten in ink or typewritten. Reports shall be submitted not later than the close of business on the first working day following the date of the report. Reports shall have all supporting documents (such as concrete placement checklist) referenced therein. Incomplete reports will not be accepted. Negative reports are required for days during which there is no activity on the project site and will include a brief statement as to why there was no activity during a normal workday or schedule.

Government Inspection

The Government reserves the right to inspect at the source, supplies or services not manufactured or performed within the Contractor's facility. Government inspection shall not constitute acceptance; nor shall it in any way replace Contractor inspection or otherwise relieve the Contractor of his responsibility to furnish an acceptable end item. When inspection at subcontractors' or suppliers' plant is performed by the Government, such inspection shall not be used by Contractors as evidence of effective inspection by such subcontractors or suppliers. (Reference sample of typical Contractor Daily Quality Control Report.)

Daily Quality Control Report
CONTRACTOR'S NAME
CONTRACTOR ADDRESS

Contract No. _____ Date _____
Project Name _____
Report No. _____
Weather _____

- Phases of Work in Progress (give briefly only phase or phases of work in progress)
- Material and/or Equipment Delivered to Site (include equipment demobilization)
- Inspection Made (include negative inspections, phase of work inspected and inspections)
- Preparatory
- Initial
- Follow-up
- Tests Performed and Results of Tests (include results of tests taken on previous dates)
- Verbal Instructions Received (list any instructions given by Government personnel on construction deficiencies, retesting required etc., with action to be taken)
- Changed Conditions/Delays/Conflicts Encountered
- Remarks

SIGNATURE _____ Quality Control Inspector

Contractor's Verification: The above report is complete and correct and all material and equipment used and work performed during this reporting period are in compliance with the contract plans and specifications except as noted above.

_____ Contractor's Approved Authorized Representative

F – Deliveries or Performance

FAR Clauses Incorporated by Reference
The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at FAR "52.252-2 CLAUSES INCORPORATED BY REFERENCE" contained in this document. See FAR 52.252-2 for an internet address (if specified) for electronic access to the full text of a clause.

Clause	Description	Date
52.242-14	Suspension of Work	Apr 1984

FAR Clauses Incorporated in Full Text

52.211-10 Commencement, Prosecution, and Completion of Work. (Apr 1984)
The Contractor shall be required to (a) commence work under this contract within thirty (30) calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than sixty (60) days after receipt of Notice to Proceed. The time stated for completion shall include final cleanup of the premises.

(End of clause)

Utilization of Government Property
The effort required to be accomplished under this contract must be performed at a Government owned facility. The Contractor, therefore, will be granted ingress and egress at the specific facility where effort is to be performed. While Contractor personnel are at the Government facility, they are required to comply with all rules and regulations of the facility, specific mention being made of complying with rules and regulations governing conduct with respect to health and safety not only as they relate to themselves but also to other personnel who are Government employees or agents of the Government and to property at the site regardless of whether or not title to such property vests with the Government.

The Government property to which the Contractor has access will at all times be in the custody of the Government and will not be considered "Government Property" furnished to the Contractor. The Government property to which the Contractor will have access under this clause will be made available during the life of the Contract. In the event the Property to which the Contractor is to have access is not made available as scheduled, the Contracting Officer shall, upon timely written request made by the Contractor, make a determination of the delay, if any, occasioned the Contractor thereby, and shall equitably adjust the delivery or performance dates or the contract price, or both, and any other contractual provision affected by any such delay, in accordance with the procedures provided for in the clause of this contract entitled, "Changes."

Government Furnished Utilities
In accordance with the clause in Section I, 52.236-14, Availability and Use of Utility Services, the Government shall furnish to the Contractor, at date of award, electrical power and domestic water from "existing outlets". These utilities will be provided to the Contractor at no cost. However, electrical power for curing concrete will not be provided.

Interruptions of Utilities

(1) No utility services shall be interrupted by the Contractor to make connections, to relocate, or for any purpose without approval of the COR.

(2) Request for permission to shut down services shall be submitted in writing to the COR not less than 10 days prior to date of proposed interruption. The request shall include the following information:

- Nature of Utility (electric, sewer, water, roadway, etc.)

- Size of line and location of shutoff
- Buildings and services affected
- Hours and date of shutoff
- Estimated length of time service will be interrupted

(3) Services shall not be shut off until receipt of approval of the proposed hours and date from the COR.

(4) Shutoffs that will cause interruption of Government work operations as determined by the COR shall be accomplished during regular non-work hours or non-work days of the using agency without any additional cost to the Government.

(5) Operation of valves on water mains will be made by Government personnel. Where shutoff of water lines interrupts service to fire hydrants or fire sprinkler systems, the Contractor shall arrange his operations and have sufficient material and personnel available to complete the work without undue delay or to restore service without delay in event of emergency.

Schedule of Values

Within ten (10) calendar days after receipt of the Notice to Proceed, the Contractor shall submit a Schedule of Values (SOV) to the Contracting Officer, COR, and Alternate COR that will be utilized to process monthly invoices. Future monthly invoice submissions may require an updated SOV based on invoiced amount and actual project progress.

Progress Schedule

a) In accordance with the clause in Section I, 52.236-15, Schedules for Construction Contracts (Apr 1984), the Contractor shall, within five (5) days after work commences, prepare and submit to the Contracting Officer, COR, and Alternate COR one (1) copy of a practicable Progress Schedule which will reflect physical progress. This chart will be prepared so as to show the starting and completion dates of all such work features, beginning with date of award and indicating calendar days to completion and/or targeted completion dates.

b) Dates for completion of features of work which will have a critical effect on the overall completion date are "milestone" dates and will be marked on the chart.

c) The Progress Schedule shall be modified by the Contractor to reflect authorized changes in the work and extensions of time. The modified schedule will then be promptly forwarded for approval to the Contracting Officer.

d) The Progress Schedule shall be the medium through which the timeliness of Contractor work effort is appraised.

Submittals

a) *Submittal Control Form:* The Contractor shall submit for approval to the Contracting Officer's Representative (COR) a minimum of one (1) copy of the Submittal Control Form, USACE 4025 or COR / Alt COR approved alternative form.

(1) *Content:* Such submittals as shop drawings, including manufacturer's literature, certificates of compliance, material samples, test reports and applicable technical data shall be itemized on the form. For each submittal the form shall include type of submittal, contract requirement reference, Contractor's scheduled dates for submitting such items, who is to perform the review and projected procurement dates. The form on which to include the above information will be furnished to the Contractor by the COR.

(2) *Submittal of Form:* In preparing the form, adequate time will be allowed for review, approval and/or comments, and possible re-submittal on those items designated for approval action by the Government. The scheduling will also be coordinated with the progress schedule.

(3) *Updating:* The Contractor shall keep the form current by making daily entries to include added or deleted items or changes in scheduled dates. Although periodic submittals of the form are not required, the Contractor shall advise the COR in writing when revisions to the initial scheduling are made. The Contractor's updated/revised scheduling shall be made available to the COR upon request for monitoring. The status of shop drawings and other submittals will be considered in determining satisfactory progress in connection with the payment provisions of the contract. Payment for materials on or off site will not be allowed for materials for which appropriate submittals have not been made and certified or approved.

b) *Submittal Procedures:*

(1) Prior to any submittal of shop drawings, lists of materials, fixtures, and equipment, the Contractor shall review and ensure that such submittal is correct and in strict compliance with the contract drawings and specifications.

(2) *Submittals for Government Approval:* The Contractor shall submit to the COR a minimum of three (3) sets of all shop drawings, manufacturer's specifications and catalog extracts which have been designated for approval action by the Government. Submittals of the following items are hereby specifically designated to be submitted to the COR for review and approval:

- Extensions of design;
- Deviations and/or departure from the contract documents (with a copy furnished to the Contracting Office, directly);
- Any items of equipment whose compatibility with the entire system must be checked.

The Contractor shall make any corrections required by the COR. If the Contractor considers any corrections indicated on the submittals to constitute a change to the contract drawings or specifications, notice as required under the clause entitled "Changes" will be given to the Contracting Officer.

(3) *Contractor Certified Submittals:* Three (3) sets of all Contractor certified shop drawings, material lists, catalog cuts, and equipment lists shall be submitted by the Contractor to the COR not less than two weeks prior to Contractor's procurement of such materials, equipment, etc. Such submittals will be accepted for information purposes only. All samples of materials submitted as required by these specifications shall be properly identified and labeled for ready identification, and upon being certified, stored at the site of the work for jobsite use until all work has been completed and accepted by the COR. Each copy of the drawings, list, etc., reviewed and certified by the Contractor and not designated to be reviewed and approved by the Government shall be identified as having received such review and certification by being so stamped, signed, and dated by the Contractor. The stamp for certification action by the Contractor shall be similar to the following:

CONTRACTOR (Firm Name)

A - Certified to comply with contract drawings and specifications.

B - Certified to comply with contract drawings and specifications as noted on shop drawings and/or attached sheet(s). (Resubmission not required provided installation conforms as noted.)

Signature: _____

Title: _____

Date: _____

(4) *Certificates of Compliance:* Any certificates required for demonstrating proof of materials with specifications requirements shall be executed in three (3) copies. Each certificate shall be signed by an official authorized to certify on behalf of the manufacturing company and shall contain the name and address of the Contractor, the project name and location, and the quantity and date or dates of shipment or delivery to which the certificates apply. Certificates of compliance shall be submitted, to the COR, ten (10) days prior to the use of the material in the project.

(5) Test Reports: Copies of laboratory test reports submitted with certificates shall contain the name and address of the testing laboratory and the date or dates of the tests to which the reports apply. Certifications shall not be construed as relieving the Contractor from furnishing satisfactory material, if, after tests are performed on selected samples, the material is found not to meet the specific requirements.

c) The COR will review all submittals and return to the Contractor, within thirty (30) calendar days exclusive of mailing time, a statement signifying approval/disapproval of the submittals. The Contractor shall follow the submittal procedures set forth in SUBMITTALS and the specifications. It shall be the Contractor's responsibility to provide materials meeting ASTM and U.L. requirements as stipulated by this contract.

Operating and Maintenance Data and Instructions

The Contractor shall furnish to the COR, prior to the completion of the work under this contract, three (3) copies of an indexed, tabbed maintenance and operations manual to include all mechanical, electrical items as listed below. The binder shall be of the three (3) post type with a sturdy continuous piano hinge with the following information:

a. Operating instructions detailing step-by-step procedures required for system start-up.

b. Maintenance instructions listing routine maintenance procedures, possible breakdowns and repairs shall be furnished.

c. For each component part installed, the instructions shall include manufacturer's name, model number, serial number, operating instructions, service manual showing parts list, dismantling, and reassembly techniques. The service manual shall identify part numbers for ordering replacement parts.

d. Component part guarantees.

e. Manufacturer's cut sheets.

f. Sequence of operation including system control diagram.

g. Manufacturer's test results shall be provided in accordance with the requirements stated in each specification section.

h. Field performance test results shall be provided in accordance with the requirements stated in each of the specification sections.

i. Framed instructions under glass or in laminated plastic, including wiring and control diagrams showing the complete layout of the entire system, including equipment, piping, valves and control sequence, shall be posted where directed. Condensed operating instructions explaining preventive maintenance procedures, methods of checking the system for normal safe operation, and procedures for safely starting and stopping the system shall be prepared in typed form, framed as specified above for the wiring and control diagrams, and posted beside the diagrams. Proposed diagrams, instructions, and other sheets shall be submitted prior to posting. The framed instructions shall be posted before acceptance testing of the systems.

G – Contract Administration Data

Identification of Government Officials

The Government officials assigned to this contract are as follows:

Administrative Contracting Officer:
Name: George Brown
Phone: 202-710-9631
Email: george.brownjr@fema.dhs.gov
Fax: N/A

Contracting Officer's Representative (COR):
Name: Toby Onyekonwu
Phone: 202-705-0178
Email: toby.onyekonwu@fema.dhs.gov

Billing & Invoice Instructions
Payments shall be made consistent with the approved Schedule of Values and the requirements of the clause at FAR 52.232-5 (incorporated by reference in Section I).

The Contractor shall submit invoices electronically (preferably) in pdf format on a monthly basis to the FEMA Finance Center at FEMA-FINANCE-VENDOR-Payments@fema.dhs.gov and copy the CO and COR.

To be considered proper, invoices shall contain at a minimum the following:

(1) Names and address of the servicing finance office (as follows)
FEMA Finance Center
P.O. Box 9001
Winchester VA 22604
(2) Name and address of Contractor
(3) Contract or Purchase Order Number
(4) Date invoice prepared and submitted
(5) Invoice #. If submitted invoice(s) requires revision(s), an "R" and corresponding number shall be added to the end of the Invoice #. Ex. Revision 1 e.g. "######R1" or Revision 2 e.g. "#####R2" and so on. Final invoices shall be represented as "######-FINAL."
(6) Name of CO and COR or Authorized Invoice Approver
(7) Date of Delivery or Service - show the month, day and year, beginning and ending dates of supplies or services delivered.

(8) A summary of claimed current and cumulative goods and services delivered and accepted to date by item and by CLIN.
(9) Discount terms if applicable.
(10) Taxpayer Identification Number (TIN) and electronic funds transfer (EFT) information or directions e.g. pay via SAM.gov ACH.

Invoice Approval

INVOICE APPROVAL (JUN 2014)
The following FEMA individual (in addition to the Contracting Officer) is hereby delegated authority to
accept goods and services and to review and approve invoices for this contract:
Authorized Invoice Approver

Name: Toby Onyekonwu
Title: Contracting Officer's Representative
Email: toby.onyekonwu@fema.dhs.gov

Defective Invoices

DEFECTIVE OR IMPROPER INVOICES (JUN 2014)

The name, title, phone number, and email of officials of the business concern who are to be notified when the Government receives an improper invoice shall be indicated on submitted invoices.

To be completed and submitted with offeror's quote.
Name:
Title: President
Phone:
Email:

Security Considerations

Contractor's employees shall not enter the Kilohana housing units or pro-actively engage with Kilohana residents.

H – Special Contract Requirements

Wage Determination
In the performance of this contract the Contractor shall comply with the requirements of U.S. Department of Labor (DoL) Wage Determination / General Decision Number HI20260001 published 10/15/2026, which is contained as Attachment 2 to this solicitation / contract.

Minimum Insurance Required for Work under this Contract
In accordance with the clause in Section I, 52.228-5, Insurance – Work on a Government Installation, the following coverage requirements shall be satisfied by the Contractor:

(1) Workers' Compensation and Employer's Liability [FAR 28.307-2(a)]
Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational disease is not compensable under those statutes, it shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least $100,000.00 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(2) General Liability [FAR 28.307-2(b)]

(a) The Contracting Officer requires bodily injury liability insurance coverage written on the comprehensive form of the policy of at least $500,000.00 per occurrence.

(b) The Contracting Officer requires property damage liability insurance coverage written on the comprehensive form of the policy of at least $500,000.00 per occurrence.

(3) Automobile Liability [FAR 28.307-2(c)]
The Contracting Officer requires automobile liability insurance written on the comprehensive form of the policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least $200,000.00 per person and $500,000.00 per occurrence for bodily injury and $20,000.00 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

PART II – Contract Clauses

I – Contract Clauses

FAR Clauses Incorporated by Reference

The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at FAR "52.252-2 CLAUSES INCORPORATED BY REFERENCE" contained in this document. See FAR 52.252-2 for an internet address (if specified) for electronic access to the full text of a clause.

Clause	Description	Date
52.202-1	Definitions	Jun 2020

Clause	Description	Date
52.203-3	Gratuities	Apr 1984
52.203-5	Covenant Against Contingent Fees	May 2014
52.203-7	Anti-Kickback Procedures	June 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	May 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	May 2014
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	June 2020
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-9	Personal Identity Verification of Contractor Personnel	Jan 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	June 2020
52.204-13	System for Award Management Maintenance	Oct 2018
52.204-14	Service Contract Reporting Requirements	Oct 2016
52.204-18	Commercial and Government Entity Code Maintenance	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities	Dec 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	Nov 2021
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.	Jan 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	Oct 2018
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2015
52.211-10	Commencement. Prosecution, and Completion of Work	Apr 1984
52.211-10	Alt I	Apr 1984
52.215-2	Audits and Records—Negotiation	Jun 2020
52.215-8	Order of Precedence—Uniform Contract Format	Oct 1997
52.215-15	Pension Adjustments and Asset Reversions	Oct 2010
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions	July 2005
52.215-19	Notification of Ownership Changes	Oct 1997
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data—Modifications ALTERNATE IV	Nov 2021
52.215-23	Limitations on Pass-Through Charges	Jun 2020
52.219-6	Notice of Total Small Business Set-Aside	Nov 2020

Clause	Description	Date
52.219-8	Utilization of Small Business Concerns	Jan 2025
52.219-14	Limitations on Subcontracting	Oct 2022
52.219-28	Post-Award Small Business Program Representations	Jan 2025
52.222-3	Convict Labor	June 2003
52.222-4	Contract Work Hours and Safety Standards—Overtime Compensation	May 2018
52.222-7	Withholding of Funds	May 2014
52.222-8	Payrolls and Basic Records	Jul 2021
52.222-10	Compliance with Copeland Act Requirements	Feb 1988
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	May 2014
52.222-14	Disputes Concerning Labor Standards	Feb 1988
52.222-15	Certification of Eligibility	May 2014
52.222-26	Equal Opportunity	Sept 2016
52.222-37	Employment Reports on Veterans	Jun 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	Dec 2010
52.222-50	Combating Trafficking in Persons	Nov 2021
52.222-54	Employment Eligibility Verification	Jan 2025
52.222-55	Minimum Wages Under Executive Order 13658	Jan 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	Jan 2022
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts	May 2024
52.223-5	Pollution Prevention and Right-to-Know Information	May 2024
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons	May 2024
52.225-13	Restrictions on Certain Foreign Purchases	Feb 2021
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.227-1	Authorization and Consent	Jun 2020
52.227-4	Patent Indemnity–Construction Contracts	Dec 2007
52.228-2	Additional Bond Security	Oct 1997
52.228-5	Insurance–Work on a Government Installation	Jan 1997
52.228-11	Individual Security-Pledge of Assets	Feb 2021
52.228-12	Prospective Subcontractor Requests for Bonds	Dec 2022
52.228-14	Irrevocable Letter of Credit	Nov 2014
52.228-15	Performance and Payments Bonds—Construction	June 2020
52.229-3	Federal, State, and Local Taxes	Feb 2013
52.229-4	Federal, State, and Local Taxes (State and Local Adjustments)	Feb 2013
52.232-5	Payments Under Fixed-Price Construction Contracts	May 2014
52.232-17	Interest	May 2014
52.232-23	Assignment of Claims	May 2014
52.232-27	Prompt Payment for Construction Contracts	Jan 2017

Clause	Description	Date
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	Oct 2018
52.232-39	Unenforceability of Unauthorized Obligations	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar 2023
52.233-1	Disputes	May 2014
52.233-3	Protest After Award	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim	Oct 2004
52.236-2	Differing Site Conditions	Apr 1984
52.236-3	Site Investigations and Conditions Affecting the Work	Apr 1984
52.236-5	Material and Workmanship	Apr 1984
52.236-6	Superintendence by the Contractor	Apr 1984
52.236-7	Permits and Responsibilities	Nov 1991
52.236-8	Other Contracts	Apr 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	Apr1984
52.236-10	Operating and Storage Areas	Apr 1984
52.236-11	Use and Possession Prior to Completion	Apr 1984
52.236-12	Cleaning Up	Apr 1984
52.236-13	Accident Prevention	Nov 1991
52.236-14	Availability and Use of Utility Services	Apr 1984
52.236-15	Schedules for Construction Contracts	Apr 1984
52.236-17	Layout of Work	Apr 1984
52.236-21	Specifications and Drawings for Construction	Feb 1997
52.236-26	Preconstruction Conference	Feb 1995
52.242-13	Bankruptcy	Jul 1995
52.243-4	Changes	Jun 2007
52.243-5	Changes and Changed Conditions	Apr 1984
52.244-5	Competition in Subcontracting	Aug 2024
52.246-21	Warranty of Construction	Mar 1994
52.248-3	Value Engineering—Construction	Oct 2020
52.249-2	Termination for Convenience of the Government (Fixed-Price) Alt. I (Sep 1996)	Apr 2012
52.249-10	Default (Fixed-Price Construction)	Apr 1984
52.253-1	Computer Generated Forms	Jan 1991

FAR Clauses Incorporated in Full Text

52.222-6 Construction Wage Rate Requirements (AUG 2018)(DEVIATION FEB 2025)

(a) *Definition.*—"Site of the work"—

(1) Means—

(i) *The primary site of the work*. The physical place or places where the construction called for in the contract will remain when work on it is completed; and

(ii) *The secondary site of the work, if any*. Any other site where a significant portion of the building or work is constructed, provided that such site is-

(A) Located in the United States; and

(B) Established specifically for the performance of the contract or project;

(2) Except as provided in paragraph (3) of this definition, includes any fabrication plants, mobile factories, batch plants, borrow pits, job headquarters, tool yards, etc., provided-

(i) They are dedicated exclusively, or nearly so, to performance of the contract or project; and

(ii) They are adjacent or virtually adjacent to the "primary site of the work" as defined in paragraph (a)(1)(i), or the "secondary site of the work" as defined in paragraph (a)(1)(ii) of this definition;

(3) Does not include permanent home offices, branch plant establishments, fabrication plants, or tool yards of a Contractor or subcontractor whose locations and continuance in operation are determined wholly without regard to a particular Federal contract or project. In addition, fabrication plants, batch plants, borrow pits, job headquarters, yards, etc., of a commercial or material supplier which are established by a supplier of materials for the project before opening of bids and not on the Project site, are not included in the "site of the work." Such permanent, previously established facilities are not a part of the "site of the work" even if the operations for a period of time may be dedicated exclusively or nearly so, to the performance of a contract.

(b) (1) All laborers and mechanics employed or working upon the site of the work will be paid unconditionally and not less often than once a week, and without subsequent deduction or rebate on any account (except such payroll deductions as are permitted by regulations issued by the Secretary of Labor under the Copeland Act (29 CFR Part 3)), the full amount of wages and bona fide fringe benefits (or cash equivalents thereof) due at time of payment computed at rates not less than those contained in the wage determination of the Secretary of Labor which is attached hereto and made a part hereof, or as may be incorporated for a secondary site of the work, regardless of any contractual relationship which may be alleged to exist between the Contractor and such laborers and mechanics. Any wage determination incorporated for a

secondary site of the work shall be effective from the first day on which work under the contract was performed at that site and shall be incorporated without any adjustment in contract price or estimated cost. Laborers employed by the construction Contractor or construction subcontractor that are transporting portions of the building or work between the secondary site of the work and the primary site of the work shall be paid in accordance with the wage determination applicable to the primary site of the work.

(2) Contributions made or costs reasonably anticipated for bona fide fringe benefits under section 1(b)(2) of the Construction Wage Rate Requirements statute on behalf of laborers or mechanics are considered wages paid to such laborers or mechanics, subject to the provisions of paragraph (e) of this clause; also, regular contributions made or costs incurred for more than a weekly period (but not less often than quarterly) under plans, funds, or programs which cover the particular weekly period, are deemed to be constructively made or incurred during such period.

(3) Such laborers and mechanics shall be paid not less than the appropriate wage rate and fringe benefits in the wage determination for the classification of work actually performed, without regard to skill. Laborers or mechanics performing work in more than one classification may be compensated at the rate specified for each classification for the time actually worked therein; provided that the employer's payroll records accurately set forth the time spent in each classification in which work is performed.

(4) The wage determination (including any additional classifications and wage rates conformed under paragraph (c) of this clause) and the Construction Wage Rate Requirements (Davis-Bacon Act) poster (WH-1321) shall be posted at all times by the Contractor and its subcontractors at the primary site of the work and the secondary site of the work, if any, in a prominent and accessible place where it can be easily seen by the workers.

(c) (1) The Contracting Officer shall require that any class of laborers or mechanics which is not listed in the wage determination and which is to be employed under the contract shall be classified in conformance with the wage determination. The Contracting Officer shall approve an additional classification and wage rate and fringe benefits therefore only when all the following criteria have

(i) The work to be performed by the classification requested is not performed by a classification in the wage determination.

(ii) The classification is utilized in the area by the construction industry.

(iii) The proposed wage rate, including any bona fide fringe benefits, bears a reasonable relationship to the wage rates contained in the wage determination.

(2) If the Contractor and the laborers and mechanics to be employed in the classification (if known), or their representatives, and the Contracting Officer agree on the classification and wage rate (including the amount designated for fringe benefits, where

appropriate), a report of the action taken shall be sent by the Contracting Officer to the Administrator of the:

Wage and Hour Division
U.S. Department of Labor
Washington, DC 20210

The Administrator or an authorized representative will approve, modify, or disapprove every additional classification action within thirty (30) days of receipt and so advise the Contracting Officer or will notify the Contracting Officer within the 30-day period that additional time is necessary.

(3) In the event the Contractor, the laborers or mechanics to be employed in the classification, or their representatives, and the Contracting Officer do not agree on the proposed classification and wage rate (including the amount designated for fringe benefits, where appropriate), the Contracting Officer shall refer the questions, including the views of all interested parties and the recommendation of the Contracting Officer, to the Administrator of the Wage and Hour Division for determination. The Administrator, or an authorized representative, will issue a determination within thirty (30) days of receipt and so advise the Contracting Officer or will notify the Contracting Officer within the 30-day period that additional time is necessary.

(4) The wage rate (including fringe benefits, where appropriate) determined pursuant to paragraphs (c)(2) and (c)(3) of this clause shall be paid to all workers performing work in the classification under this contract from the first day on which work is performed in the classification.

(d) Whenever the minimum wage rate prescribed in the contract for a class of laborers or mechanics includes a fringe benefit which is not expressed as an hourly rate, the Contractor shall either pay the benefit as stated in the wage determination or shall pay another bona fide fringe benefit or an hourly cash equivalent thereof.

(e) If the Contractor does not make payments to a trustee or other third person, the Contractor may consider as part of the wages of any laborer or mechanic the amount of any costs reasonably anticipated in providing bona fide fringe benefits under a plan or program; provided, That the Secretary of Labor has found, upon the written request of the Contractor, that the applicable standards of the Construction Wage Rate Requirements statute have been met. The Secretary of Labor may require the Contractor to set aside in a separate account assets for the meeting of obligations under the plan or program.

(End of clause)

52.222-11 Subcontracts (Labor Standards) (MAY 2014)(DEVIATION FEB 2025)

(a) *Definition.* "Construction, alteration or repair," as used in this clause, means all types of work done by laborers and mechanics employed by the construction Contractor or

construction subcontractor on a particular building or work at the site thereof, including without limitation-

(1) Altering, remodeling, installation (if appropriate) on the site of the work of items fabricated off-site;

(2) Painting and decorating;

(3) Manufacturing or furnishing of materials, articles, supplies, or equipment on the site of the building or work;

(4) Transportation of materials and supplies between the site of the work within the meaning of paragraphs (a)(1)(i) and (ii) of the "site of the work" as defined in the FAR clause at 52.222-6, Construction Wage Rate Requirements of this contract, and a facility which is dedicated to the construction of the building or work and is deemed part of the site of the work within the meaning of paragraph (2) of the "site of the work" definition; and

(5) Transportation of portions of the building or work between a secondary site where a significant portion of the building or work is constructed, which is part of the "site of the work" definition in paragraph (a)(1)(ii) of the FAR clause at 52.222-6, Construction Wage Rate Requirements, and the physical place or places where the building or work will remain (paragraph (a)(1)(i) of the FAR clause at 52.222-6, in the "site of the work" definition).

(b) The Contractor shall insert in any subcontracts for construction, alterations and repairs within the United States the clauses entitled-

(1) Construction Wage Rate Requirements;
(2) Contract Work Hours and Safety Standards-Overtime Compensation (if the clause is included in this contract);

(3) Reserved;

(4) Payrolls and Basic Records;

(5) Compliance with Copeland Act Requirements;

(6) Withholding of Funds;

(7) Subcontracts (Labor Standards);

(8) Contract Termination-Debarment;

(9) Disputes Concerning Labor Standards;

(10) Compliance with Construction Wage Rate Requirements and Related Regulations; and

(11) Certification of Eligibility.

(c) The prime Contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor performing construction within the United States with all the contract clauses cited in paragraph (b).

(d) (1) Within fourteen (14) days after award of the contract, the Contractor shall deliver to the Contracting Officer a completed Standard Form (SF) 1413, Statement and Acknowledgment, for each subcontract for construction within the United States, including the subcontractor's signed and dated acknowledgment that the clauses set forth in paragraph (b) of this clause have been included in the subcontract.

(2) Within fourteen (14) days after the award of any subsequently awarded subcontract the Contractor shall deliver to the Contracting Officer an updated completed SF 1413 for such additional subcontract.

(e) The Contractor shall insert the substance of this clause, including this paragraph (e) in all subcontracts for construction within the United States.

(End of clause)

52.222-12 Contract Termination—Debarment (MAY 2014)(DEVIATION FEB 2025)

A breach of the contract clauses entitled Construction Wage Rate Requirements, Contract Work Hours and Safety Standards-Overtime Compensation, Payrolls and Basic Records, Compliance with Copeland Act Requirements, Subcontracts (Labor Standards), Compliance with Construction Wage Rate Requirements and Related Regulations, or Certification of Eligibility may be grounds for termination of the contract, and for debarment as a Contractor and subcontractor as provided in 29 CFR 5.12.

(End of clause)

52.222-35 Equal Opportunity for Veterans (Jun 2020)

(a) *Definitions*. As used in this clause-

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

52.222-36 Equal Opportunity for Workers with Disabilities (Jun 2020)

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

52.225-9 Buy American–Construction Materials (Oct 2022)

(a) *Definitions*. As used in this clause—

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is–

(i) A commercial item (as defined in paragraph (1) of the definition at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are

produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if–

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 55 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners
are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference. (1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR 12.505(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial item or to the construction materials or components listed by the Government as follows:

None

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that—

(i) The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute. (1)(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including—

(A) A description of the foreign and domestic construction materials;
(B) Unit of measure;
(C) Quantity;
(D) Price;
(E) Time of delivery or availability;
(F) Location of the construction project;
(G) Name and address of the proposed supplier; and
(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

To be completed and submitted with offeror's quote (If Applicable)

FOREIGN AND DOMESTIC CONSTRUCTION MATERIALS PRICE COMPARISON

Construction Material Description	Unit of Measure	Quantity	Price (Dollars)*
Item 1:			
Foreign construction material			
Domestic construction material			
Item 2:			
Foreign construction material			
Domestic construction material			

[*List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.*]

[*Include other applicable supporting information.*]

[** Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued).*]

(End of clause)

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

http://www.acquisition.gov/far/index.html

(End of clause)

52.244-6 Subcontracts for Commercial Products and Commercial Services (JAN 2025)(DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and *commercially available off-the-shelf item* have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.

(b) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(c) (1) The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509), if the subcontract exceeds the threshold specified in FAR 3.1004(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(ii) 52.203-15, Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.

(iii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

(iv) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017).

(v) 52.204-21, Basic Safeguarding of Covered Contractor Information Systems (NOV 2021) , other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause 52.204-21.

(vi) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(vii) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(viii) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(ix) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(x) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C.637(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(xi) Reserved.

(xii) Reserved.

(xiii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C.4212(a));

(xiv) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020)(29 U.S.C.793).

(xv) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C.4212).

(xvi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause 52.222-40.

(xvii) (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50(22 U.S.C. chapter 78 and E.O. 13627).

(xviii) 52.222-55, Minimum Wages for Contractor Workers under Executive Order 14026 (JAN 2022), if flow down is required in accordance with paragraph (k) of FAR clause 52.222-55.

(xix) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause 52.222-62.

(xx) (A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a) if flow down is required in accordance with 52.224-3(f).

(B) Alternate I (JAN 2017) of 52.224-3, if flow down is required in accordance with 52.224-3(f) and the agency specifies that only its agency-provided training is acceptable).

(xxi) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxii) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) , if flow down is required in accordance with paragraph (c) of FAR clause 52.232-40.

(xxiii) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxiv) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C.2631), if flow down is required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(d) The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.

(End of clause)

Homeland Security Acquisition Regulation (HSAR) Clauses Incorporated by Reference

HSAR Clause	Description	Date
3052.205-70	Advertisements, Publicizing Awards, and Release	SEP 2012
3052.228-70	Insurance	Dec 2003

3052.242-72	Contracting Officer's Representative	Dec 2003

Homeland Security Acquisition Regulation (HSAR) Clauses Incorporated in Full Text

3052.204-71 Contractor Employee Access (Jul 2023) Alternate II (Jun 2006)

(a) *Sensitive Information,* as used in this clause, means any information, which if lost, misused, disclosed, or, without authorization is accessed, or modified, could adversely affect the national or homeland security interest, the conduct of Federal programs, or the privacy to which individuals are entitled under section 552a of title 5, United States Code (the Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or an Act of Congress to be kept secret in the interest of national defense, homeland security or foreign policy. This definition includes the following categories of information:

(1) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (Title II, Subtitle B, of the Homeland Security Act, Public Law 107-296, 196 Stat. 2135), as amended, the implementing regulations thereto (Title 6, Code of Federal Regulations, Part 29) as amended, the applicable PCII Procedures Manual, as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the PCII Program Manager or his/her designee);

(2) Sensitive Security Information (SSI), as defined in Title 49, Code of Federal Regulations, Part 1520, as amended, "Policies and Procedures of Safeguarding and Control of SSI," as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or his/her designee);

(3) Information designated as "For Official Use Only," which is unclassified information of a sensitive nature and the unauthorized disclosure of which could adversely impact a person's privacy or welfare, the conduct of Federal programs, or other programs or operations essential to the national or homeland security interest; and

(4) Any information that is designated "sensitive" or subject to other controls, safeguards or protections in accordance with subsequently adopted homeland security information handling procedures.

(b) "Information Technology Resources" include, but are not limited to, computer equipment, networking equipment, telecommunications equipment, cabling, network drives, computer drives, network software, computer software, software programs, intranet sites, and internet sites.

(c) Contractor employees working on this contract must complete such forms as may be necessary for security or other reasons, including the conduct of background investigations to determine suitability. Completed forms shall be submitted as directed by the Contracting Officer. Upon the Contracting Officer's request, the Contractor's employees shall be fingerprinted, or subject to other investigations as required. All Contractor employees requiring recurring access to Government facilities or access to sensitive information or IT resources are required to have a favorably adjudicated background investigation prior to commencing work on this contract unless this requirement is waived under Departmental procedures.

(d) The Contracting Officer may require the Contractor to prohibit individuals from working on the contract if the Government deems their initial or continued employment contrary to the

public interest for any reason, including, but not limited to carelessness, insubordination, incompetence, or security concerns.

(e) Work under this contract may involve access to sensitive information. Therefore, the Contractor shall not disclose, orally or in writing, any sensitive information to any person unless authorized in writing by the Contracting Officer. For those Contractor employees authorized access to sensitive information, the Contractor shall ensure that these persons receive training concerning the protection and disclosure of sensitive information both during and after contract performance.

(f) The Contractor shall include the substance of this clause in all subcontracts at any tier where the subcontractor may have access to Government facilities, sensitive information, or resources.

(g) Each individual employed under the contract shall be a citizen of the United States of America, or an alien who has been lawfully admitted for permanent residence as evidenced by a Permanent Resident Card (USCIS I-551). Any exceptions must be approved by the Department's Chief Security Officer or designee.

(h) Contractors shall identify in their proposals, the names and citizenship of all non-U.S. citizens proposed to work under the contract. Any additions or deletions of non-U.S. citizens after contract award shall also be reported to the contracting officer.

(End of clause)

FEMA Clauses

Advertisements, Publicizing Awards, and News Releases

All press releases or announcements about agency programs, projects, and contract awards need to be cleared by the FEMA CO. Under no circumstances shall the Contractor, or anyone acting on behalf of the Contractor, refer to the supplies, services, or equipment furnished pursuant to the provisions of this contract in any publicity news release or commercial advertising without first obtaining explicit written consent to do so from the CO. The Contractor agrees not to refer to awards in commercial advertising in such a manner as to state or imply that the product or service provided is endorsed or preferred by the Federal Government or considered to be superior to other products or services.

Statement of Contractor Assurance

By submitting this offer, the offeror certifies that, at the time of submission, they have adequate financial resources to perform the contract; they have the capability to comply with the required or proposed delivery or performance schedule; and otherwise meet or exceed the general standards required by FAR 9.104-1.

The offeror shall disclose any filings for bankruptcy, fines levied by governmental agencies, or legal proceeding against any participating organization, employees, corporate officer, or entity that might have a material effect on the proposer's ability to implement the proposed project, as required by FAR [52.209-5 or 52.212-3(h)*], Certification Regarding Responsibility Matters.

**52.212-3(h) applies to acquisitions over the Simplified Acquisition Threshold (SAT)*

AI Language

The Contractor will not use or deploy the use of Artificial Intelligence, as defined by 15 U.S.C. 9401(3), unless expressly authorized by the Contracting Officer.

The term 'artificial intelligence' means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations or decisions influencing real or virtual environments. Artificial intelligence systems use machine and human-based inputs to –

(A) perceive real and virtual environments;

(B) abstract such perceptions into models through analysis in an automated manner; and

(C) use model inference to formulate options for information or action.

NARA Records Management Language for Contracts
The following standard items relate to records generated in executing the contract and should be included in a typical Electronic Information Systems (EIS) procurement contract:

1. Citations to pertinent laws, codes and regulations such as 44 U.S.C chapters 21, 29, 31 and 33; Freedom of Information Act (5 U.S.C. 552); Privacy Act (5 U.S.C. 552a); 36 CFR Part 1222 and Part 1228.

2. Contractor shall treat all deliverables under the contract as the property of the U.S. Government for which the Government Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest.

3. Contractor shall not create or maintain any records that are not specifically tied to or authorized by the contract using Government IT equipment and/or Government records.

4. Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected by the Freedom of Information Act.

5. Contractor shall not create or maintain any records containing any Government Agency records that are not specifically tied to or authorized by the contract.

6. The Government Agency owns the rights to all data/records produced as part of this contract.

7. The Government Agency owns the rights to all electronic information (electronic data, electronic information systems, electronic databases, etc.) and all supporting documentation created as part of this contract. Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.

8. Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format (paper, electronic, etc.) or mode of transmission (e-mail, fax, etc.) or state of completion (draft, final, etc.).

9. No disposition of documents will be allowed without the prior written consent of the Contracting Officer. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the agency records schedules.

10. Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, this contract. The Contractor (and any sub-contractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

PART III – List of Documents, Exhibits, and Other Attachments

J – List of Documents, Exhibits, and Other Attachments

(1) Attachment 1 – Statement of Work (SOW), dated August 2025
(2) Attachment 2 – Wage Determination (reference Section H for compliance requirements)
(3) Attachment 3 – Disaster or Emergency Area Representation
(4) Attachment 4 – Notice or Emergency Area Set-Aside
(5) Attachment 5 – Restrictions on Subcontracting Outside Disaster or Emergency Area

PART IV – Representations and Instructions

K – Representations, Certifications, and Other Statements of Offerors or Respondents

FAR Provisions Incorporated by Reference
The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at FAR "52.252-2 CLAUSES INCORPORATED BY REFERENCE" contained in this document. See FAR 52.252-2 for an internet address (if specified) for electronic access to the full text of a clause.

Clause	Description	Date
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications.	Jun 2020
52.236-28	Preparation of Proposals–Construction	Oct 1997

FAR Provisions Incorporated in Full Text
52.204-8 Annual Representations and Certifications (JAN 2025) (DEVIATION FEB 2025)

(a) (1) The North American Industry Classification System (NAICS) code for this acquisition is 237990.

(2) The small business size standard is $45 M.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 237990 if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) (1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) □ Paragraph (d) applies.

(ii) □ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless–

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) Reserved.

(xv) Reserved.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA–designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $50,000, the basic provision applies.

(B) If the acquisition value is $50,000 or more but is less than $100,000, the provision with its Alternate II applies.

(C) If the acquisition value is $100,000 or more but is less than $102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

_x_ (i) 52.204-17, Ownership or Control of Offeror.

_x_ (ii) 52.204-20, Predecessor of Offeror.

_x_ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

__ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

__ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

__ (vi) 52.227-6, Royalty Information.

__ (A) Basic.

__ (B) Alternate I.

__ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through https://www.sam.gov. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and

applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date (If applicable)*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

_____

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures (Dec 2023)

(a) *Definitions.* As used in this provision, *Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system,* and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures*.

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(*https://www.sam.gov)* for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and

the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government.

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) Definitions. As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

To be completed and submitted with offeror's quote.

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in

(c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management database via https://www.acquisition.gov (see 52.204-7).

(End of provision)

L – Instructions, Conditions, and Notices to Offerors or Respondents

FAR Provisions Incorporated by Reference
The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at FAR "52.252-2 CLAUSES INCORPORATED BY REFERENCE" contained in this document. See FAR 52.252-2 for an internet address (if specified) for electronic access to the full text of a clause.

Clause	Description	Date
52.204-7	System for Award Management	Nov 2024
52.204-16	Commercial and Government Entity Code Reporting	Aug 2020

FAR Provisions Incorporated in Full Text

52.216-1 Type of Contract (Apr 1984)

The Government contemplates award of a firm-fixed price contract resulting from this solicitation.

(End of provision)

52.222-5 Construction Wage Rate Requirements–Secondary Site of Work (May 2014)

(a)(1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at 52.222-6, Construction Wage Rate Requirements, of this solicitation.

(2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.

(b)(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer.

(2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of provision)

52.225-10 Notice of Buy American Requirement–Construction Materials (May 2014)

(a) *Definitions*. "Commercially available off-the-shelf (COTS) item," "construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American—Construction Materials" (Federal Acquisition Regulation (FAR) clause 52.225-9).

(b) *Requests for determinations of inapplicability*. An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers.

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by

adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR 52.225-9.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers.

(1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR 52.225-9, the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR 52.225-9 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR 52.225-9 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested—

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of provision)

52.233-2 Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from *George Brown*.

FEMA-Long Term Recovery Office
FEMA-DR-4724-HI
535 Lipoa Pkwy
Kihei, Hawaii 96753

(b) The copy of any protest shall be received in the office designated above within one (1) day of filing a protest with the GAO.

(End of provision)

52.236-27 Site Visit (Construction) (Feb 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name:	Toby Onyekonwu
Address:	FEMA-Long Term Recovery Office FEMA-DR-4724-HI 535 Lipoa Pkwy
Contact:	toby.onyekonwu@fema.dhs.gov

(End of Provision)

52.252-1 Provisions Incorporated By Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of Provision)

Offer Affordability

The Government seeks offers with a total price in the range of $160,000.00 – $220,000.00. The Offeror should not interpret this figure as a ceiling (or as a floor) on offers; rather, this information is provided as a courtesy to the prospective Offerors. The Government may select an offer for award with a price below, at, or exceeding this figure if it finds that offer provides the best value and funds are available.

L - Offer Preparation Instructions

General Instructions

The Government intends to make award through lowest price technically acceptable (LPTA) proposal in response to the solicitation requirements. The technically acceptable portion will be a combination of the Technical Proposal and Past Performance. The offer shall be prepared as three separate parts / files: a "Technical Proposal", a “Past Performance", and Price.

The Technical Proposal shall be submitted in MS Word or PDF format.

The Past Performance may be submitted in MS Word, MS Excel, or PDF.

The Price may be submitted in MS Word, MS Excel, or PDF.

All interested parties shall be registered and active in the System for Award Management (SAM) at time an offer is submitted. This project will be Set-Aside 100% for Small Business. All offerors must be considered local to county of Maui as authorized in the disaster area of DR-4724-Hawaii.

Submit via email to George Brown, *Contract Officer,* at george.brownjr@fema.dhs.gov by the due date and time referenced in Block 9 of the SF1442. Direct all communications in reference to this solicitation to this same POC who may also be contacted at 202-710-9631.

Technical Proposal Instructions

The organizational structure of the Technical Proposal shall be as follows:

1. *Work Plan* – Provide a work plan that clearly describes the approach for completing the tasks in accordance with the Statement of Work (SOW). The work plan shall be specific, detailed and complete to include materials, a preliminary Progress Schedule (ref. Section F and if possible), a proposed submittal schedule (if possible), a design concept (if applicable) and any other information pertinent to your approach in performing work on this requirement.
2. *Project Management* – Describe your organization and the management methods to include how operations will be directed and controlled on a daily basis including project manager coordination with the corporate office, subcontractors, and subcontractors' corporate. Describe the responsibilities of the key position(s) and their authority/responsibilities within the organization.
3. *Deviations/Exceptions in the Quotation* – Include a statement specifying the extent of agreement with all terms, conditions, and provisions and fully explain and clearly identify any deviations, exceptions, or conditional assumptions. Deviations or exceptions that result in the proposal failing to conform to (a) material term(s) and condition(s) of the solicitation and without providing any obvious benefit to the Government may be deemed noncompliant with solicitation response requirements, and no award will be made to that Offeror.

Technical proposal shall include completion of the following clauses (if applicable):

- 52.209-7 Information Regarding Responsibility Matters (Oct 2018)
- 52.204-8 Annual Representations and Certifications (JAN 2025) (DEVIATION FEB 2025)
- 52.225-9 Buy American–Construction Materials (Oct 2022)
- DEFECTIVE OR IMPROPER INVOICES (JUN 2014)

Past Performance Instructions

The Past Performance evaluation results in an assessment of the offeror's ability to meet the solicitation requirements. The past performance evaluation considers each offeror's demonstrated recent and relevant record of performance in supplying products and services that

meet the contract's requirements. In accordance with Revolutionary Federal Acquisition Regulation Overhaul (RFO) 15.202(c)(3)(ii), the recency and relevancy of the information, source of the information, context of the data, and general trends in contractor's performance shall be considered. These shall be combined to establish a performance confidence rating as detailed in Section M – Evaluation Factors.

1. The past performance evaluation will consider past performance information regarding predecessor or successor companies, key personnel, joint ventures, and teaming arrangements that may perform aspects of the requirement. The Government reserves the right to conduct an independent past performance evaluation and determine the confidence of offerors. Offerors may submit up to three (3) projects. Each project will strictly not exceed three (3) pages. The total Part II Past Performance will not exceed nine (9) pages. Pages beyond page three of any individual referenced project will be removed and will not be evaluated.

2. To be considered relevant, projects must have a single value at or above $100,00.00. Offerors must not combine projects to get an aggregate total of $100,000.00. If combined, it may be considered not relevant. This defines the minimum magnitude under North American Industry Classification System (NAICS) code 237990 – Other Heavy and Civil Engineering Construction for this evaluation. The effort must be ongoing or have been performed during the past five (5) years from the date of issuance of this solicitation. Projects that are not ongoing or were not performed within the past five (5) years from the date of issuance of this solicitation will be considered not recent and will not be evaluated.

3. IAW RFO 15.202(c)(1), an offeror without a record of relevant past performance or for whom information on past performance is not available may not be evaluated favorably or unfavorably on past performance. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral".

Rating System for Past Performance Evaluation Factors

Rating	**Definition**
Acceptable	Based on the offeror's past performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort or the offeror's past performance record is unknown (see note below).
Unacceptable	Based on the offeror's past performance record, the Government has no reasonable expectation that the offeror will successfully perform the required effort.
Neutral	No relevant past performance is identifiable upon which to base a meaningful performance rating. This is neither a negative or positive assessment.

Price Instruction

Offeror must provide pricing sheet of total cost and how total cost was derived in response to the statement of work.

M – Evaluation Factors for Award

The Government intends to make award to the lowest price technically acceptable (LPTA) proposal in response to the solicitation requirements. From a technical conformance standpoint, the Government shall evaluate whether the Offeror adequately addressed the solicitation's instructions for the Technical Proposal to the extent that the Government possesses the necessary confidence that the Offeror's response i.e. proposed approach will translate into successful project completion within the time proposed. The technical evaluation will combine Technical Proposal and Past Performance for a rating of Acceptable or Unacceptable.

Technical Rating	
Rating	Description
Acceptable	Proposal meets the requirements of the solicitation.
Unacceptable	Proposal does not meet the requirements of the solicitation.

This selection will be conducted in accordance with Revolutionary Federal Acquisition Regulation Overhaul (RFO) Part 15, Contracting by Negotiation, RFO Part 12 Acquisition of Commercial Products and Commercial Services, and RFO Part 36, Construction and Architect-Engineer Contracts, as supplemented by the RFO Defense Federal Acquisition Regulation Supplement (R-DFARS) and Department of the Air Force Contracting Compass procedures (DAF). The RFO is available electronically at: https://www.acquisition.gov/.

From a price conformance standpoint, the Government shall evaluate whether the Offeror adequately addressed the solicitation's instructions for the Business Proposal, including compliance with Labor Standards for Contracts Involving Construction (FAR Subpart 22.4), to determine proposed pricing as fair and reasonable.

The Government reserves the right to make no award at all as a result of this solicitation in the event the Government determines that best value cannot be derived from this evaluation basis.

FAR Class Deviation 25-03: In accordance with Executive Order's 14148 and 14208, the following notice is incorporated into this award:

Notice #1:

Contracting Officers shall also include the following notice and refrain from considering the representations listed in the notice:

"System updates may lag policy updates. The System for Award Management (SAM) may

continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals— Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Components shall not consider or use these representations.

Contracting officers **will not consider** the following representations when making award decisions or enforce requirements:

• Paragraph (d) and (t) of 52.212-3, Offeror Representations and Certifications—
• Commercial Products and Commercial Services;
• Paragraphs (b)(33), (b)(34), (e)(1)(ix), and (e)(1)(x) of 52.212-5, Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services. Additionally, per this deviation, in paragraph (b)(46), E.O. 14057 does not apply;
• Paragraphs (e)(1)(ii)(I) and (e)(1)(ii)(J) of Alternate II of 52.212-5, Contract Terms and Conditions Required To Implement Statutes or Executive Orders—
• Commercial Products and Commercial Services; and Paragraphs (a)(1)(vii) and (a) (1)(viii) of 52.213-4, Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services). **Additionally, per this deviation, in paragraph (b)(1)(xvii), E.O. 14057 does not apply.**

Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Notice #2:

"Contractor acknowledges that this order shall conform to DHS FAR Class Deviation 25-01, dated February 21, 2024, implementing Executive Orders 14173 and 14168."

END OF NOTICES